



LEASE AGREEMENT

THIS LEASE AGREEMENT is made and entered into on this **October 1, 2024**, by and between **Elianny Fernandez Fundora and Fidel Orlando Milian Rosell** ("Resident"), ("Co-Signor") and **Mission Manor Apartments** (Collectively referred to as "Landlord").

1. **LEASE TERM.** Resident hereby leases a **0** bedroom unit, located at **2912 W 42ND AVE 03 KANSAS CITY, KS 66103** for the term beginning on the first day of **October 2, 2024** and ending on the last day of **April 1, 2025**.
2. Resident is taking possession of the premises on **October 2, 2024**.
3. **RENT:** Total Amount Due Broken Down as Follows:

Rent	\$800.00	
Minus Monthly Concession	\$0.00	* See page 5, Addendum for Rental Promotion
Total Rent Due Monthly	\$800.00	
Pet Rent	\$0.00	
Other	\$0.00	
Short Term Fees	\$50.00	
Utility Bill Back	\$50.00	
Total Amount Due	\$900.00	

Resident agrees to pay Landlord the total amount due per month as rent. If Resident does not pay total amount due before the 15TH of the month, resident(s) will lose their monthly concession and be responsible to pay market rate rent plus all additional charges for said month.

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Rent shall be payable in full on the first day of the month ("rent paying day"), including the last month of this Lease. Rent shall be payable to the Landlord in the name of the community **Mission Manor Apartments, Mission Manor Apartments, 4125 South Thompson Street, Kansas City, KS 66103**, or at such other place as Landlord may designate. If rent is paid after the 5th day of the month, a late charge of **\$75.00** will then be due, plus a late charge of **\$75.00** shall be charged on the 20th day of the month until the outstanding balance is paid in full. Payments are applied to LATE CHARGES, DAILY ACCRUED INTEREST, DAMAGES AND REPAIR CHARGES FIRST, and then rent. If Resident's check is dishonored, there will be an additional charge of \$50.00. A late charge per the above schedule will also be assessed on dishonored checks. LATE FEES ARE STRICTLY ENFORCED AND WILL NOT BE WAIVED.

Upon the signing of this Lease, Resident shall pay **\$870.97** as payment from the date of possession until the first day of **November**. Resident agrees to pay all charges including-but not limited to-prorated rent, monthly fees, utility fees, security deposits, refundable and non-refundable one-time pet fees, and administrative fees prior to taking possession of the unit. Landlord shall not turn over possession of the unit until all such fees are paid in full.

4. **USE AND OCCUPANCY.** The premises shall be used exclusively as a private residence by Resident. No businesses such as baby-sitting will be permitted unless prior written authorization is received by Landlord and Resident agrees to pay any additional fees and abide by any restrictions that may be imposed. The premises will be occupied only by **(list the names of all adults and children):**

Elianny Fernandez Fundora and Fidel Orlando Milian Rosell

Persons not listed above must not stay in the apartment for more than 2 (TWO) consecutive days without Landlord's prior written consent and for no more than twice that many days in any given month. A fee of \$25.00 per day will be assessed for any unauthorized persons that stay for more than 2 (TWO) consecutive days without Landlord's prior written consent.

5. **PETS.** Pets are not permitted even temporarily on the premises unless the Landlord and Resident sign a separate pet agreement. Breeds that will exceed the size or weight limits of the property are not permitted even as puppies.

6. **TERMINATION.** At the end of the Lease term, if the Resident does not give a (2) two months' written notice, it will automatically continue on a month to month basis. A month to month rent premium of \$100.00 will be added to the current market rent each month. The month to month renewal of the lease contract will begin without necessity of your signature upon the expiration of the term specified in your written Lease Contract. The Resident and any Co-Signer of this Lease will remain responsible for rent during the initial or successive terms of this Lease and during any holdover period. Resident shall deliver peaceful possession of the premises to Landlord upon termination hereof for any reason. After a minimum residency of 90 days resident may terminate this agreement by giving written notice. The notice must be given no less than (2) months prior to the expiration of the initial or successive terms with a payment of \$1,200.00 cancellation charge equal to 1.5 times the amount of the market rent of said unit. Cancellation charge cancels the lease and is not to be used as rent during the notice period. The notice months' rent must be paid in full at the time the (2) two months' notice is given. If the initial term of lease is not fulfilled for any reason, the security deposit or full coverage amount for any deposit alternative program shall be forfeited. Oral notices will not be accepted. Delivering a vacate notice in writing in no way eliminates the Resident's liabilities relating to the full term of the Lease Agreement, damages to the property, unpaid monies, or the financial balance of this Lease Agreement.

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7. **PERSONAL PROPERTY ABANDONMENT.** If Resident vacates or abandons the premises and does not remove his/her belongings from the premises or general storage space, Resident hereby gives permission to Landlord to remove same and place in a warehouse or storage facility to hold for charges and sell same at a public or private sale after thirty (30) days waiting period. The premises shall be considered abandoned when the Landlord reasonably believes Resident has discontinued occupancy.

8. **UTILITIES:** For the entire term, Residents shall place utilities for the rented premises into their names or pay their billed share of utilities kept in the Landlords name (such as the water and sewer service), maintain uninterrupted service, and timely pay all utility bills, including ELECTRIC, GAS, WATER/SEWER, to the utility company, the Landlord or the Landlords third party billing company. Resident also agrees if a flat fee is charged per month to the Resident by the Landlord for their share of the water and sewer usage, this cost can be increased if the rates charged by the utility company increase to the Landlord. This increase can happen with a 30 day notice to the resident and may happen several times during the lease term.

Residents shall pay all charges of utility providers because of late payment or other default. Landlord is not responsible for utility service interruptions that are beyond its control or due to necessary repairs, replacements, or alterations. If the Resident does interrupt service for any utility during their term, the resident will be charged for any costs related to turning the utility back on including, but not limited to, the past due balance, late fees, connection fees, re-connection fees, installation fees, permits and inspection fees that may be charged by the utility company for the service. Any utilities that are not transferred into the Residents responsibility will be charged a monthly processing fee of \$50.00 per month unless the utilities remain in the Landlords name such as water and sewer. If fees are not paid, the Residents security deposit can and will be applied to these fees. A new security deposit can and will be requested of the Resident. This is a violation of the lease and eviction proceedings may result.

The Landlord agrees, at Landlord's expense to pay for the following utilities: *TRASH.*

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9. **DEPOSITS.** Resident has paid total deposits in the sum of **\$400.00** the receipt and sufficiency of which is acknowledged by canceled check or receipt. The return of Resident's deposits is governed by each Deposit Agreement, executed concurrently with this Lease.

Deposit Type	Total Amount	Non-Refundable or Admin Fee	Resident Initials
Security Deposit	\$0.00	\$0.00	EF FM
One-Time Pet Fees	\$0.00	\$0.00	EF FM
Rentable	\$400.00		EF FM

10. **ACCEPTANCE AND CARE OF PREMISES.** Resident has examined and accepted the premises. Resident agrees to identify any defects and damages to the premises on the Move-In and Move-Out Inventory Condition Form ("Inventory Form"), supplied by the Landlord, and return it to the Landlord at the time of possession. Defects and damages not set out in the Inventory Form shall be presumed to have first occurred during Resident's occupancy of the premises. Resident shall use reasonable diligence in the care of the premises and shall maintain the premises in a safe and sanitary condition. Resident will not make any alterations to the premises nor remove Landlord's fixtures, furniture, and/or furnishings for any purpose. No resident shall himself or permit his family, visitors or guests to drill, poke or puncture holes into any ceiling, roof or walls for any purpose or occasion.

11. **DEFAULT BY RESIDENT.** If Resident, Resident's invitees or guests violates any term and/or condition of this Lease, the property or pet policies or any federal, state, or local law, then Landlord may terminate Resident's right of occupancy by giving such notice to Resident as may be required by law. The termination of Resident's possession shall not release Resident from liability for future rents due under this Lease. Acceptance of moneys at any time will not waive any of Landlord's rights.

12. **REIMBURSEMENT BY RESIDENT.** Resident agrees to reimburse Landlord promptly in the amount of any loss, property damage, or cost of repairs or service caused by the negligence or improper use by Resident, Resident's agents, invitees, family or guests.

13. **LIABILITY OF LANDLORD.** Resident acknowledges that the Landlord has neither expressed nor implied any assurances regarding the safety or security of Resident or Resident's agents, invitees, family or guests. Landlord shall not be liable to Resident, or any person occupying or visiting the apartment or apartment complex, for any injuries to the person or loss or damage to the property from any cause. Without in any way limiting the foregoing, Landlord shall not be liable for any claims for damage caused by roof (leaks or damage), plumbing, drains, rain, snow, ice, flood or sewer overflow or backup, nor from the fact that the building or any part thereof has been damaged by fire. **LANDLORD DOES NOT CARRY INSURANCE ON RESIDENT'S PERSONAL PROPERTY.**

14. **RENTERS INSURANCE:** Resident is required to furnish Landlord with evidence of Minimum Required Insurance prior to occupancy of the leased premises and through the duration of the lease and any renewal period. The Minimum Required Insurance for **Mission Manor Apartments** is \$100,000. If at any time the Resident does not have Minimum required Insurance, Resident is in breach of the Lease Agreement and the Landlord shall have, in addition to any other rights under the Lease Agreement, the right but not the obligation to purchase Minimum Required Insurance coverage and seek reimbursement from the Resident in the form of a \$50.00 Lease Violation Fee for all costs and administrative expenses associated with such purchase.

Resident may purchase renters insurance meeting the Minimum Required Insurance coverage amounts from an insurance company of the Resident's choice. Landlord has partnered with LeasingDesk Insurance Services and eRenterplan to offer affordable insurance coverage to Residents. If Resident chooses to purchase the Minimum Required Insurance from a different insurance company, Resident is required to furnish written evidence that Landlord has been added as an "Interested Party" on the insurance certification along with the following address for purposes of notification of any chance or cancellation to coverage:**Mission Manor Apartments, 4125 South Thompson Street, Kansas City, KS 66103.**

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Initials of Residents

15. **FAILURE TO REPORT BY RESIDENTS AND DAMAGE OR DESTRUCTION OF PREMISES.** In the event of damage to the premises, or malfunction of equipment or utilities, Resident shall immediately notify Landlord. Resident may not authorize outside maintenance. Upon inspection, the resident may be charged for any repairs or damages created by the resident. These charges will coincide with the standard move out charges worksheet. In the event that a condition within Resident's leased premises occurs that is damaging the premises and Resident fails or neglects to notify Landlord so that Landlord may correct and/or mitigate the damage being done, Resident accepts responsibility for any damages within the apartment and any liability resulting from Resident's negligence in reporting the condition to Landlord. Conditions that require immediate notification upon discovery by Resident to Landlord include, but are not limited to, water leaks, leaking or damaged plumbing fixtures/pipes or hot water tanks, evidence of mold, broken doors or windows, electrical or fire hazards, or infestations.

16. **RIGHT OF ENTRY.** Landlord shall have the right to enter the premises at all reasonable hours, if at all possible granting a 24-hour notice (unless there is an emergency) for the purpose of inspecting the same and making necessary repairs and maintenance thereto. Such right of entry hereby granted to Landlord shall include any and all reasonable business purposes connected with the operation of the complex, and any business relating to the premises incidental to the operation of the complex including but not limited to pest control services. Resident may not change locks or add keyed locks without Landlord's permission. If the resident changes the locks, the Resident will be charged a fee of \$100 per lock to cover the cost of labor and materials.

17. **SUBLETTING OR ASSIGNMENT.** Subletting or assignment is not allowed without the prior written consent of Landlord.

18. **LEGAL EXPENSES.** Resident shall pay all costs, expenses, attorney's fees and collection fees allowable by law, which shall be incurred or expended by Landlord due to Resident's breach of the covenants and agreements of this Lease. Resident hereby acknowledges that the managing agent of the complex may sue in its name on behalf of Landlord to enforce any terms of this Lease.

19. **BINDING ON HEIRS.** All covenants contained herein shall be binding upon and inure to the benefit of Landlord and Resident and their respective heirs, executors, administrators, assigns and successors. The Landlord's rights and remedies under this Lease are cumulative. The exercise of any one or more thereof shall not exclude nor preclude Landlord from exercising any other right or remedy.

20. **STORAGE.** Landlord shall not be obligated to provide Resident storage, nor shall Landlord be responsible for any loss or damage to Resident's property, which may have been placed in a storage area. Resident may not store any flammable items or other objects, which may increase the insurance risk rating of the property. Resident acknowledges that all passageways may be used only for entry or exit and not for storage of any kind. Barbeque grills of any type are not permitted to be stored on balconies. Resident acknowledges that the use of any type of barbecue grills is prohibited except for specially designed areas at the property and must be in compliance with city ordinances and rules established by the Landlord.

21. **SMOKE ALARMS.** Residents and occupants acknowledge that Landlord has equipped the premises with (an) operable smoke detector(s). Residents and occupants acknowledge that it is a serious lease violation to disable the smoke detector(s) at any time. Disabling of smoke detectors could result in lease termination, fines or both. Residents and occupants also acknowledge that they should perform periodic tests to the smoke detector(s) and replace batteries as needed. Residents and occupants are **required** to report any malfunctions of their smoke detector(s) to Landlord immediately. Residents and occupants acknowledge that Landlord shall not be liable for damages or injuries to persons or property caused by Residents' or occupants' disabling of smoke detector(s), failure to regularly test smoke detector(s), failure to change batteries as needed or failure to immediately report malfunction of smoke detector(s). If upon inspection, the smoke detector has been disabled or the batteries have been removed by the resident necessitating management enforcement, a fee of \$50 per smoke detector for each smoke detector that needs to be replaced and a fee of \$10 per battery will be charged to the resident to cover the cost of labor and materials.

22. **RELOCATION.** There is no relocation clause in this lease. Please refer to "Termination Paragraph #6" for conditions of lease termination/buy-out.

23. **LEAD BASE HAZARDS.** Resident hereby acknowledges they have received from Landlord the EPA pamphlet "Protect Your Family From Lead In Your Home". Resident also acknowledges that he has received a "Disclosure of Information Statement" from Landlord identifying the known presence, if any, of lead base paint in their apartment or the fact that Landlord has no knowledge of any reports or records pertaining to lead paint or lead-based hazards in the housing.

24. **QUIET ENJOYMENT.** Resident agrees to occupy the premises in such a manner so as not to infringe upon the quiet use and enjoyment of other Resident's use of the premises. Resident agrees sitting, loitering, parties; playing and barbecuing are not permitted in front of any building, on porches or walkways. Resident agrees that fireworks are not allowed on property. Handling, owning and setting off fireworks are not permitted at any time. **RESIDENT AGREES TO OUR PROPERTY QUIET TIME FROM 10:00 P.M TO 7:00 A.M (CURFEW).**

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Initials of Residents

25. **PARKING POLICIES.** Resident agrees that only those vehicles listed below may park in the provided spaces without separate written consent from Landlord. Resident agrees that any expense landlord incurs due to Residents vehicles will be charged to their account and become due as stated in paragraph 2 of the lease agreement. Resident agrees that all vehicles will be kept in running condition and properly licensed, or landlord may tow off property at Residents expense.

Make/Model	Type	Year	License No	State
C-300	Mercedes Benz	2016	E878P	FL

Resident acknowledges that no more than two vehicles per household will be permitted nor will the parking of boats, trailers, recreational vehicles or commercial vehicles be permitted to park in the lot overnight.

26. **RESIDENT INFORMATION.** Resident understands and agrees that any false representations made on this Lease or any Resident eligibility documents shall be grounds for immediate Lease termination.

27. **GENERAL.** This Lease may only be modified in writing, signed by Resident and Landlord. In the event of more than one Resident, or a Co-Signor, each Resident and Co-Signor is jointly and severally liable for each provision of this Lease. Time is of the essence of this Lease. When appropriate, the use of the singular shall include the plural form. It is understood and agreed that all of the covenants, agreements and obligations of Landlord hereunder are limited by and are made expressly subject to the terms and provisions of a written management agreement between Landlord and the owner of the apartment complex. In the event Resident or any invitee is involved in any criminal activity, either on or off the property, Landlord may terminate this Lease and Resident will be required to vacate the premises. This community is a drug free community and any use or sale of illegal drugs will be grounds for immediate termination of this Lease.

28. **MULTIPLE RESIDENTS OR OCCUPANTS.** Each resident is jointly and severally liable for all Lease Agreement obligations. If you or any guest or occupant violates the Lease Agreement or rules, all residents are considered to have violated the Lease Agreement.

29. **ANTENNA AND SATELLITE DISHES.** Radio and Television antennas or Satellite Dishes shall not be placed or erected on the roof or any exterior surface including balcony and patio areas of the Apartment building or on any common areas of the apartment community.

30. **SPECIAL PROVISIONS.** The following special provisions and any addendum's or written rules furnished to you before signing control over conflicting provisions of this printed lease agreement.

See additional addendum.

31. **RESIDENT & OCCUPANT ACKNOWLEDGMENT OF SECURITY POLICY:**

- a) No Representations. Residents and Occupants acknowledge that neither Owner nor Management has made any representations, written or oral, concerning the safety of the community or the effectiveness or operability of any security devices or security measures.
- b) No Warranty or Guarantee. Residents and Occupants acknowledge that neither Owner nor Management warrants or guarantees the safety or security of Residents, Occupants, or their guests or invitees against the criminal or wrongful acts of third parties. Each Resident, Occupant, guest, and invitee is responsible for protecting his or her own person and property.
- c) No Reliance on Security Devices or Measures. Residents and Occupants acknowledge that security devices or measures may fail or be thwarted by criminals or by electrical or mechanical malfunction. Therefore, Residents and Occupants acknowledge that they should not rely on such devices or measures and should protect themselves and their property as if these devices or measures did not exist.

EF FM Initials of Residents

32. **WAIVER OF JURY TRIAL:** Owner and Resident hereby waive trial by jury in any action, proceeding or counterclaim brought by any of the parties hereto against any other party on, or in respect of, any matter whatsoever arising out of or in any way connected with this Lease Contract, the relationship of owner and resident hereunder, resident's use or occupancy of the leased premises (including a suit for unlawful detainer) and/or any claim of injury or damage.

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32. **RELEASE OF LANDLORD FROM PAST AND FUTURE NEGLIGENCE:** IN CONSIDERATION OF THE TERMS OF THIS LEASE, THE UNDERSIGNED RESIDENT OR RESIDENTS DOES HEREBY RELEASE AND FOREVER DISCHARGE LANDLORD, LANDLORD'S ADMINISTRATORS, AGENTS SERVANTS, EMPLOYEES AND ASSIGNS WHO MIGHT BE CLAIMED TO BE LIABLE FROM ANY AND ALL CLAIMS, DEMANDS, DAMAGES, ACTIONS, CAUSES OF ACTIONS AND SUITS ON ACCOUNT OF ALL INJURIES, KNOWN OR UNKNOWN, BOTH TO PERSONS AND PROPERTY, WHICH MAY RESULT OR IN THE FUTURE DEVELOP FROM ANY CONDITION OR OCCURENCE AT Mission Manor Apartments CAUSED BY NEGLIGENCE OF LANDLORD, LANDLORD'S ADMINISTRATORS, AGENTS, SERVANTS EMPLOYEES OR ASSIGNS.

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SIGNATURES

This Lease consisting of 3 pages including the page on which these signatures appear, a Security Deposit Agreement and 11 Exhibit (s) attached hereto, entered into this agreement on **October 1, 2024**.

Elianny Fernandez Fundora fernandezfundoraelianny@gmail.com XXXX-XX-7041

Fidel Orlando Milian Rosell fidelmilian53@gmail.com XXXX-XX-5176

BY Beverly Fernandez: OPG VENTURES, LLC: Managing Agent for: Mission Manor Apartments

ADDENDUM FOR RENTAL PROMOTION AGREEMENT

Resident’s Name(s): Elianny Fernandez Fundora and Fidel Orlando Milian Rosell

Apartment Address: 2912 W 42ND AVE 03, KANSAS CITY, KS 66103

I/We Elianny Fernandez Fundora and Fidel Orlando Milian Rosell agree that the below information is in accordance with a “promotion” which has been offered at the time of my/our move in or renewal on October 1, 2024.

Promotion Offered: - \$0.00
- \$0.00

EF FM _____ Initials of Residents

I/We understand and agree that after my/our one-year lease agreement with Mission Manor Apartments expires or becomes a month-to-month contract or a new one-year lease, my rental rate will increase in accordance with the current renewal/market value and I/We will lose any and or all rental concessions that were previously granted for the previous lease.

EF FM _____ Initials of Residents

I/We understand and agree that if for any reason I/we fail to complete the original lease agreement by moving out early or failing to pay rent as agreed, I/we will owe, in addition to any other sums that may be due under the lease, an amount equal to the rental concessions provided for in this addendum.

Elianny Fernandez Fundora fernandezfundoraelianny@gmail.com

Fidel Orlando Milian Rosell fidelmilian53@gmail.com

BY Beverly Fernandez:
OPG VENTURES, LLC:
Managing Agent for: Mission Manor Apartments

STANDARD MOVEOUT CHARGES

As of September 29, 2020

Items	Charge
Clean out fireplace	\$35.00
Ceiling Fan Cleaning	\$30.00
Light bulb replacement	\$5.00 - \$25.00 per item
Refrigerator – Dirty	\$30.00
Refrigerator – Missing items	\$20.00 per missing item
Stove – Dirty	\$30.00
Stove Drip Pans	\$30.00
Dishwasher – Dirty	\$30.00
Microwave Dirty	\$25.00
Countertops/Cabinets – Dirty	\$30.00
Bathrooms and Bedrooms–Dirty–Attempted to clean	\$50.00
Bathrooms and Bedrooms – Dirty – No Attempt to clean	\$200.00
Closets – Dirty	\$15.00 per closet
Any items/furniture left in the Unit	\$25.00 per item
Debris/Trash removal	\$20.00 per trash bag
Apartment key not turned in	\$25.00
Mailbox key not turned in (If appropriate)	\$35.00
Windows/Screens/Doors/Blinds/Patio Doors – Dirty	\$25.00-\$30.00 per item
Windows/Screens/Doors//Blinds/Patio Doors – Broken	Per repair bid
Painting needed for excessive wear/damage	\$150.00 minimum
Wall Damage – Fist size	\$50.00
Wall Damage – Larger than Fist size	Per repair bid
Carpet – Cleaning	\$65.00 minimum
Carpet – Dirty	\$30.00 per room or charged by vendor
Carpet – Stained	\$75.00 per room or charged by vendor
Carpet/Vinyl – Replacement (New upon move in)	\$1,750.00 or charged by vendor
Carpet/Vinyl – Replacement (1yr.old upon move in)	\$1,500.00 or charged by vendor
Carpet/Vinyl – Replacement (2 yr. old upon move in)	\$1,250.00 or charged by vendor
Carpet/Vinyl – Replacement (3 yr. old upon move in)	\$1,000.00 or charged by vendor
Carpet/Vinyl – Replacement (4 yr. old upon move in)	\$750.00 or charged by vendor
Floors – Dirty	\$30.00 per room
Floors – Stained	\$75.00 per room

**These are standard charges. If cost to replace or correct is higher than the specified amount, you will be charged the full amount to replace.



Elianny Fernandez Fundora

fernandezfundoraelianny@gmail.com



Fidel Orlando Milian Rosell

fidelmilian53@gmail.com

BY Beverly Fernandez:
OPG VENTURES, LLC:
Managing Agent for:

Beverly Fernandez

Mission Manor Apartments

PET AGREEMENT

This is an Addendum to the Lease Agreement date **October 1, 2024** between **Elianny Fernandez Fundora and Fidel Orlando Milian Rosell** ("Resident") and **Mission Manor Apartments** (collectively referred to as "Landlord"). It is hereby agreed as follows:

[X] I Have No Pets at This Time

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Initials of Residents

1. The pet(s) is/are a fully grown male/female, dog(s)/cat(s).The following breeds will not be accepted under any circumstances: Akitas, Chows, Pit Bulls, Great Danes, Rottweilers, and Doberman Pinschers. Puppies under 1 (one) year of age will not be permitted without written permission from Management.

2. The Said pet(s) is described as follows:

The said pet's name is:

The said pet's breed is:

The said pet's description is:

The said pet's name is:

The said pet's breed is:

The said pet's description is:

3. A Veterinarian's certificate is attached to attest that:

A. Animal has received all required inoculations including but not limited to rabies, distemper, feline leukemia, etc.

4. A one-time pet fee of \$300 in addition to the standard security deposit is hereby acknowledged and will not be refunded until move-out, if applicable. \$300 of said fee is non-refundable for residents with 1 (one) pet and \$300 Is non-refundable for residents with 2 (two) pets.

5. Pet rent of \$25 per month for 1 pet and \$50 per month for 2 pets over and above the normal rent, will be due and payable under the same terms and conditions as set forth in the aforementioned Lease Agreement. A default in pet rent will be deemed a default as set forth in aforementioned Lease.

6. By Resident's signature below, Resident acknowledges reading and complying with all pet rules as set forth. Failure to comply will be deemed a default of the Lease.

i. Resident represents that the above-mentioned pet is a domesticated animal, is not vicious and has not bitten, attacked, or menaced anyone or any other animal in the past.

ii. 2 pets per apartment home are allowed in the following combinations only:

1. 2 small dogs (25 pounds or under) or

2. 2 cats or

3. 1 small dog (25 pounds or under) or

4. 1 small dog (under 25 pounds) and 1 cat
- Ferrets, rabbits or pot-bellied pigs are not accepted.
- iii. Pets left unattended for 24 hours or longer will be deemed abandoned, in which case, Residents herby gives Landlord the right to enter, notify proper authorities and remove pet. Pet cannot at any time be left alone on a balcony/deck or tied outside apartment

iv. PET MUST BE KEPT ON A LEASH AT ALL TIMES. Pet cannot be curbed on shrubbery, flowers, or small trees. Resident is responsible for picking up and disposing of pet waste. Failure to do so will result in a fine of \$50.00 per occurrence. Second violation will be deemed a violation of Lease Agreement. Pets are not permitted in the pool area, offices, clubhouse, playground, recreational facilities, laundry rooms or other dwelling units.

v. Any and all damages to the premises as a result of pet presence will be repaired at Resident's sole cost and expense. The non-refundable portion of pet fee will not be applied to said damages. The balance of the deposit, less damage cost, will be refunded with the normal security deposit after the apartment is vacated and inspected, subject to the terms of the Lease Agreement.

7. Landlord has permission from time to time with proper notice to inspect premises for damage. All pets are subject to a three-strike policy. After receiving the third strike against the pet, Resident will have 10 (ten) days to remove pet(s) from premises or will be considered in violation of Lease Agreement.
- In Consideration of Landlord's agreement and representation as hereinabove stated, Landlord does hereby permit Resident to have said pet in Landlord's apartment.
- Elianny Fernandez Fundora

fernandezfundoraelianny@gmail.com

om
- Fidel Orlando Milian Rosell

fidelmilian53@gmail.com
-

BY Beverly Fernandez:
OPG VENTURES, LLC:
Managing Agent for:

Beverly Fernandez

Mission Manor Apartments

ORION PROPERTY GROUP PROPERTY POLICIES

Resident's Name(s): Elianny Fernandez Fundora and Fidel Orlando Milian Rosell

Apartment Address: 2912 W 42ND AVE 03, KANSAS CITY, KS 66103

- 1. If any Resident transfers to another apartment within the community during the term of the lease, a NON-REFUNDABLE transfer fee of \$300.00 will be charged, and a new lease must be signed. In addition to the transfer fee, each Resident will be required to pay a Security Deposit and any other fees required by the property. Resident must be current and not have a balance in their current leased unit, must pass a unit transfer inspection conducted by the management team, and have resided in the current unit for a minimum of one lease term of 12 months.
- 2. Insurance coverage maintained by the Landlord does not protect the Resident (s) against loss of personal property by theft, fire, water damage, etc. Each Resident is advised to obtain a policy of Renter's Insurance protecting his/her household goods and personal property.
- 3. Excessive speed within the community will not be permitted. Please limit your speed within the Apartment Community to 10 MPH.
- 4. Unsightly vehicles (such as broken windows, flat tires) will not be permitted in or around the premises. All vehicles on the premises must be operational, licensed and regularly used. No washing or repairing of vehicles will be allowed. Cars and motorcycles are required to be parked in parking areas provided. Parking of trucks, boats, trailers, recreational or commercial vehicles are prohibited even temporarily. Failure to comply with these rules may result in towing of the vehicle at the owner's expense.
- 5. Resident(s) agree to keep the leased premises clean and safe. Resident (s) must maintain the leased premises at a temperature adequate to prevent injury or damage to said premises, appliances and water pipes therein. Landlord shall furnish light bulbs at the time possession is given, but Resident (s) shall be responsible for replacement thereafter.
- 6. Resident may not hang bathing suits, brooms, mops, rugs, etc. on the balcony or patio or anywhere else outside the apartment.
- 7. Window screens shall not be removed except for cleaning and must be replaced immediately. The cost of the labor and materials for any window screens that are damaged or destroyed will be charged to the resident. Landlord shall not be responsible for the washing of any windows.
- 8. Drapes may be hung provided the mini or vertical blinds are left at the window. Drapes must have a white backing if mini or vertical blinds are not provided. In no event shall Resident be allowed to place tin foil, sheets, blankets, or any other color than white or alabaster blinds, or any other type of covering over the windows. A charge of \$50.00 to cover the cost of labor and materials per mini-blind will be charged for any mini-blinds that are damaged or destroyed. The resident will be given notice of this charge in advance.
- 9. Resident (s) agree to refrain from displaying signs or other advertisements on the premises, placing air-conditioning units in the windows, antennas on the roofs or walls or cooking in the basements, front yards, halls, stoops, porches, or balconies. Resident (s) agrees to keep the apartment entrances and exteriors free and clear of unsightly objects and will keep no objects including, but not limited to, bicycles, tricycles, toys, and mops, waste baskets in the hallways, porches, balconies or patios at any time.
- 10. The equipment in the bathrooms and kitchens shall not be used for any purposes other than those for which they were constructed. No sweepings, potato peelings, rubbish rags, disposable diapers, sanitary napkins, tampons, ashes or other obstructive substances shall be thrown therein. Do not place metal, string, potato peelings, grease, coffee grounds, nut shells, glass, olive or fruit pits, corn cobs, paper, wire, bones or non-food items in disposal. Resident (s) shall be held responsible for any repairs or damage resulting from the misuse of such equipment and shall reimburse Landlord for necessary expenses incurred in the repair of such equipment. Washers or dryers not approved in writing by the Landlord are prohibited. A service call to unstop a garbage disposal shall be at the expense of resident unless it is due to mechanical failure. A resident shall be responsible for any stoppage to plumbing that is confined to their unit and not attributable to a main line serving the building.
- 11. Resident (s) must control the volume of stereo's, TV's, and musical devices within their apartments and automobiles to the extent that they do not disturb other Residents. Noisy or disorderly conduct annoying or disturbing other Resident (s) will not be permitted.
- 12. If there are coin operated laundry facilities located on the property, please report machines which are not operating properly to the management office. We appreciate your help in keeping our laundry facilities clean. Property is not responsible for lost or damaged belongings.
- 13. Resident (s) should use nails when hanging pictures, mirrors, etc. Please **DO NOT** use adhesive hangers or any other adhesive backed materials to hang decorations. Resident (s) will be responsible for all costs associated with wall repairs. Resident (s) shall not poke, drill or puncture holes into ceiling for any purpose.
- 14. Trash containers have been placed at various locations throughout the community for convenience. In the event that one is full please **DO NOT** place trash on the ground; simply proceed to the next closest dumpster to dispose of trash. At no time is it permitted to place trash outside the apartment, entry door, patio, or balcony. Trash containers are permitted for residents use only. All bags should be secured. Digging or scavenging are not permitted. Prohibited items include but are not limited to: Flammable or Toxic Material, Furniture, Appliances, and Auto Batteries. All boxes must be broken down. A \$75.00 lease violation fee will be charged to the resident(s) for removal of these items from dumpster areas.
- 15. Fireplace ashes should only be placed in the metal drums so designated located by the trash container areas. Never place ashes in the dumpster.
- 16. Residents are requested to notify the Management office if planning to be away for more than five days.
- 17. Locks shall not be changed or added without the written approval of the Landlord. The Landlord must at all times have access to all apartments for emergency reasons. The Landlord will allow that the resident purchases a chain lock or similar lock for onsite maintenance to install at the Landlords convenience. At the time the apartment is vacated, the lock will become the property of the Landlord and must remain with the apartment.

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Initials of Residents

ORION PROPERTY GROUP PROPERTY POLICIES CONTINUED

Resident's Name(s): Elianny Fernandez Fundora and Fidel Orlando Milian Rosell
Apartment Address: 2912 W 42ND AVE 03, KANSAS CITY, KS 66103

- 18. Residents agree to pay key replacement fee the greater of \$50.00 per lost key or the fee of \$100.00 incurred by Owner to change the appropriate locks. **A lock out fee of \$50 will be charged.** Fees are charged at time of lock out service. If fees are not paid within 30 days of lock out, said fees shall be deemed to be additional rent.
- 19. Highly combustible items such as gasoline, fuel-fed space heaters, paints with or without oil bases, etc. shall not be stored on the premises. The top of all water heaters near the vent pipe shall be kept clear of all items. No items will be stored in utility (furnace) closets, including but not limited to mops, brooms, and vacuum cleaners.
- 20. Residents and or occupants living on the premises and their guests must not disturb other residents. Residents and or occupants (under the age of 18) shall be under parental control and supervision. Residents are responsible for any damages caused by occupants and or guests.
- 21. No resident shall himself or permit his family, employees or visitors to cut flowers, shrubs, or pick or cut branches from trees on the grounds surrounding the building or planted areas of the property. No vegetable plots or flower gardens shall be planted or cultivated on the property without the written consent of the Landlord.
- 22. Active sports, such as baseball, football, badminton, etc. shall be **PROHIBITED** on the grounds, walks, or lawns adjacent to the buildings.
- 23. The conduct of the Resident and such others for whom the Resident is responsible shall not result in or cause destruction, damage, or waste to and/or on the Premises, or any part thereof including, but not limited to, any and all recreational facilities and equipment, common areas such as laundry facilities and hallways, or the property of other Residents, their invitees, visitors, or management team. If such destruction or damage occurs by the Resident or their invitees, the Resident will be responsible for covering the costs of any necessary repairs and such damage, destruction or waste could result in lease termination. **A \$50.00 lease violation fee** will be charged to the Resident any time waste removal from common areas such as, but not limited to, recreational facilities, laundry facilities, hallways, patios/balconies, or grounds is deemed necessary.

These policies are to be strictly observed and will be enforced by the Landlord. We hope all Residents will understand that these rules have been made for their protection, pleasure and convenience. The Landlord reserves the right to make such other reasonable policies as may, in the judgment of Landlord, from time to time becomes necessary to protect the safety, care and cleanliness of the premises and preserve good order therein.

 _____ Elianny Fernandez Fundora	_____ fernandezfundoraelianny@gmail.com
 _____ Fidel Orlando Milian Rosell	_____ fidelmilian53@gmail.com
_____	_____
_____	_____
_____	_____
_____	_____
BY Beverly Fernandez: OPG VENTURES, LLC: Managing Agent for:	<i>Beverly Fernandez</i> Mission Manor Apartments

SWIMMING POOL POLICIES

- 1. Because the swimming pool is for the use of all of the community, we ask that each be considerate of all others in regard to inviting guests. *The Landlord permits guests with written approval.* A resident must accompany visitors when in the pool area.
- 2. Solo swimming is at your own risk. **NO LIFEGUARD IS ON DUTY! DIVING IS NOT PERMITTED AT ANY TIME!**
- 3. A parent must accompany any child or guest under 16 using the swimming pool. A single adult may supervise only two (2) children at one time. Adults who are not the parent of a supervised child must have written approval from Child's legal guardian or parent. Children may not supervise or be responsible for other children. Persons over 16 may swim alone as long as they are responsible and do not disturb other residents or guests at the pool. Persons under 18 may not have guests.
- 4. From time to time, Landlord will hold pool parties for Residents and their guests. No other parties are to be held at the pool without the prior written consent of Landlord. **Any more than two guests invited by Resident at one time, shall be considered a party and are not permitted.**
- 5. In order for all Residents to enjoy using the pool, profanity, horseplay, scuffling, nudity, or harassment of others will not be permitted. At the Landlord's sole discretion, anyone suspected of being under the influence of alcohol or drugs will not be allowed in the pool area.
- 6. Loud radios are not allowed at the pool. Please use proper earphones so as not to disturb others. Safety is another concern.
- 7. Please use only unbreakable containers in the pool area. **NO GLASS PERMITTED IN POOL AREA.**
- 8. Rafts are not permitted in pool area or pool.
- 9. Remove excessive suntan oil before entering the pool. Lotions are preferred.
- 10. For the protection of all Residents, use of the pool is prohibited to anyone with an infectious disease, sore or inflamed eyes, a cold, nasal or ear discharge, open sores or bandages of any kind. Young children still in diapers must use regulation swim pants when entering the pool. *No diapers, undergarments or bare bottoms are permitted.*
- 11. Regulation bathing suits must be worn while in the pool. Cut offs are not permitted. Diapers are not permitted.
- 12. Receptacles have been provided for cigarette butts and trash. Please help us keep the pool areas clean.
- 13. Pets are prohibited in or around the pool areas by health regulations.
- 14. Life rings, and shepherd's hooks are provided for the safety of those people using the pool. Do not use life preservers, hooks as toys. Do not hang or sit on the safety ropes, if applicable. **NO LIFEGUARD IS ON DUTY! DIVING IS NOT PERMITTED AT ANY TIME!**
- 15. Landlords reserve the right to refuse access to the pool if in Landlord's sole discretion, the health or safety of the Resident or other Residents of the community may be at risk.

These policies are to be strictly observed and will be enforced by the Landlord. We hope all Residents will understand that these rules have been made for their protection, pleasure and convenience. The Landlord reserves the right to make such other reasonable policies as may, in the judgment of Landlord, from time to time becomes necessary to protect the safety, care and cleanliness of the premises and preserve good order therein.

NO LIFEGUARD IS ON DUTY! SWIMMING IS AT YOUR OWN RISK. DIVING IS NOT PERMITTED AT ANY TIME!
Landlord not to be held responsible for anyone not following the above Rules and Regulations.

Thank you for your cooperation in observing these policies.

 Elianny Fernandez Fundora	 Fidel Orlando Milian Rosell	fernandezfundoraelianny@gmail.com
		fidelmilian53@gmail.com
BY Beverly Fernandez: OPG VENTURES, LLC: Managing Agent for:	 Beverly Fernandez	Mission Manor Apartments

Resident's Name(s): **Elianny Fernandez Fundora and Fidel Orlando Milian Rosell**

Apartment Address: **2912 W 42ND AVE 03, KANSAS CITY, KS 66103**

1. On the 6th of each month, late charges for your lease agreement on page 1, paragraph 3, are to be assessed, in accordance with the Lease Agreement, against any unpaid account. A collection fee of \$10.00 per visit will be charged to the resident's ledger for each instance the agent must knock on or place notices on the resident's door asking for the payment of delinquent rent.
2. After the 6th of the month, a balance due reminder will be sent to delinquent residents, informing the Resident their full amount of rent has not been received. A collection fee of \$10.00 per visit will be charged to the resident's ledger for each instance the agent must knock on or place notices on the resident's door asking for the payment of delinquent rent.
3. Landlord may report information about Residents' accounts to the credit bureaus. Timely payments, late payments, missed payments or other defaults on the Residents' accounts may be reflected on the Residents' credit accounts.
4. By the 11th of the month, a rent default notice is sent to all delinquent residents owing the entire month of rent informing the Resident their rent has not been received and it must be paid immediately to avoid legal action.
5. All payments made after the 10th of the month must be made with **CREDIT CARD or ACH (E-CHECK). (NO CASH EVER ACCEPTED).**
6. Once it becomes necessary to take legal action, all future communications from the resident will be referred to our attorneys.
7. If legal action was previously necessary for a resident, and he/she paid and was allowed to remain in the apartment, and if the resident is again delinquent on the 11th (half of the rent due) or the 25th (entire month of rent and applicable late charges are due) of the next month, a lawsuit for rent and possession will be immediately filed. Under no circumstances will the resident be permitted to stay after the second suit.
8. **METHODS OF ACCEPTABLE PAYMENTS – NO CASH EVER ACCEPTED.** Please visit www.rentcafe.com, find your property, click on resident login and pay online. To pay online you must have an active Resident portal account. If you are unsure if you have one or not, please contact us to verify and have it activated. Online payments can be made via ACH (E-CHECK) or by DEBIT/CREDIT CARD. ACH (E-CHECK) payments have no additional fee; debit and credit card payments may include an additional service fee charged to the Resident.

EF FM Initials of Residents

9. Physical eviction proceedings begin immediately after the suit is decided.
10. **WAIVER OF JURY TRIAL:** Owner and Resident hereby waive trial by jury in any action, proceeding or counterclaim brought by any of the parties hereto against any other party on, or in respect of, any matter whatsoever arising out of or in any way connected with this Lease Contract, the relationship of owner and resident hereunder, resident's use or occupancy of the leased premises (including a suit for unlawful detainer) and/or any claim of injury or damage.

A COLLECTION FEE OF \$10.00 PER VISIT WILL BE CHARGED TO THE RESIDENTS LEDGER EACH VISIT THAT AN AGENT MUST KNOCK ON OR PLACE LATE NOTICES ON THE RESIDENTS DOOR ASKING FOR THE PAYMENT OF DELINQUENT RENT. THIS COLLECTION FEE IS ONLY CHARGED AFTER THE DUE DATE OF EACH MONTH WHEN RENT IS PAST DUE. THIS COLLECTION FEE IS TO COVER THE COST OF LABOR AND MATERIALS FOR THE AGENT IN THE PROCESS OF THE COLLECTION OF RENT. TO AVOID THIS COLLECTION FEE, PLEASE ENSURE YOUR RENT IS PAID IN FULL BY THE DUE DATE OF EACH MONTH.


Elianny Fernandez Fundora

fernandezfundoraelianny@gmail.com


Fidel Orlando Milian Rosell fidelmilian53@gmail.com

BY Beverly Fernandez:
OPG VENTURES, LLC:
Managing Agent for:

MOLD ADDENDUM

Resident’s Name(s): Elianny Fernandez Fundora and Fidel Orlando Milian Rosell

Apartment Address: 2912 W 42ND AVE 03, KANSAS CITY, KS 66103

Mold (also known as mildew) is found throughout the environment. Many species are commonly found on the skin of healthy people as well as in air and soil. Mold not only causes discoloration and odor problems, but also may actually lead to the deterioration of building materials. As long as moisture is present, mold can grow: without moisture, molds cannot reproduce. It is through undiscovered or ignored water problems that these organisms can become a health issue. You must report moisture problems or water leaks to the property office immediately. Remember these rules and you will help stop mold growth in your residence.

Preventing mold begins with you!

- 1. Keep your dwelling clean. Vacuuming, mopping and using household cleaner will removed the household dirt and debris that encourage mold growth.
- 2. Immediately throw away moldy food.
- 3. Removed moisture on windows, walls, ceilings, floors and other surfaces.
- 4. Use exhaust fans in the bathroom and kitchen when showering or cooking.
- 5. Be sure to keep the shower curtain inside the tub and fully close the shower curtain.
- 6. Wipe moisture off shower walls, shower doors, the bathtub and the bathroom floor.
- 7. Leave the bathroom door open until all moisture on the mirrors, bathroom walls and tile surfaces dissipate.
- 8. Hang up your towels and bath mats so they will completely dry out.
- 9. Promptly notify management in writing about any air conditioning or heating problems, water leaks or signs of mold. Failure to promptly pay attention to leaks or moisture that might accumulate on dwelling surfaces, that might get inside walls or ceiling can encourage mold growth.
- 10. Periodically open windows and doors on days when humidity is below 50% to help your dwelling dry out.

Prolonged moisture buildup can result from a wide variety of sources, such as:

- 1. Rain leaking from roofs, windows, doors or walls.
- 2. Overflow or leaks from shower, bathtubs, toilets, lavatories, sinks, washing machines, dryer discharge vents, dehumidifiers, plumbing lines or fixtures, plants, pet urine, cooking spills, refrigerator, AC drip pans or condensation lines.
- 3. Insufficient drying of carpets, carpet pads, shower walls and bathroom floors.

Small areas of mold on non-porous surfaces (such as ceramic tile, Formica, vinyl flooring, metal, wood or plastic) can be cleaned by first using soap (or detergent) and water, then letting the surface dry, and within 24 hours applying a pre-mixed, spray on household cleaner such as Lysol Disinfectant® or Clorox Cleanup®. Only a few of the common household cleaners will actually kill mold and dead mold can still reproduce spores. Tilex® and Clorox® contain bleach which can discolor or stain so be sure to follow the instructions on the container. Do not attempt to clean mold on porous surfaces such as sheetrock or large areas on non-porous surfaces. In such cases, promptly notify the management in writing of the problem.

(Please read manufacturer’s instructions and warnings before using products listed above.)

If you are concerned that you may be sensitive to mold, it is recommended that you consult your physician. Information regarding mold and mildew can be found at www.cdc.gov or www.epa.gov.

The presence of mold will NOT negate your responsibilities to fulfill your lease.

 _____ Elianny Fernandez Fundora	_____ fernandezfundoraelianny@gmail.com	
 _____ Fidel Orlando Milian Rosell	_____ fidelmilian53@gmail.com	
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BY Beverly Fernandez: OPG VENTURES, LLC: Managing Agent for:	<i>Beverly Fernandez</i> Mission Manor Apartments	

PEST CONTROL ADDENDUM

This document is an Addendum and is a part of the Rental/Lease Agreement, dated **October 1, 2024**, between **Mission Manor Apartments** "Owner" and **Elianny Fernandez Fundora and Fidel Orlando Milian Rosell** "Resident" for the premises located at, **2912 W 42ND AVE 03, KANSAS CITY, KS 66103**. It is our goal to maintain the highest quality living environment for our Residents. The Owner/Agent has inspected the unit prior to lease and knows of no pest infestation. The Resident and the Landlord must work together to prevent and eliminate the infestation of bedbugs, cockroaches and other pests. The Landlord shall take such action as necessary to prevent and eliminate pests. Residents are required to immediately notify the Landlord of bedbugs, cockroaches or other pests found in their unit or in common areas.

Residents shall maintain their units so as to discourage pests. This includes eliminating cockroach and bed bug habitats such as clutter and garbage; removing access to food and water for cockroaches; and keeping food items tightly covered. In the event of an infestation, the Resident shall cooperate with Landlord by allowing reasonable access for inspections or re-inspections, preparing their unit for treatment and disposing of property which may be the source the infestation or which may serve as a home for pests. Failure to cooperate may be grounds for termination of the Lease

Residents have an important role in preventing and controlling all pests and bed bugs. While the presence of bed bugs is not always related to personal cleanliness or housekeeping, good housekeeping will help control the problem by identifying bed bugs, minimizing an infestation, and limiting its spread.

Resident(s) represent(s) that all furnishings and other personal property that will be moved into the unit are free of bedbugs and the unit is free of bed bugs prior to moving belongings in of said unit.

EF FM _____ **Initials of Residents**

Resident will allow management to inspect all mattresses and box springs before they are moved into the property. Resident agrees to maintain the premises in a manner that prevents the occurrence of a bedbug infestation in the premises. Resident agrees to uphold this responsibility in part by complying with the following list of responsibilities:

1. Resident shall practice good housekeeping, including the following: • Resident shall remove clutter. Bed bugs like dark, concealed places, such as in and around piles of clothing, shoes, stuffed animals, laundry, especially under the bed and in closets. Reducing clutter also makes it easier to carry out housekeeping.
2. Resident shall keep the unit clean. Vacuum and dust regularly, particularly in the bedroom, being especially thorough around and under the bed, drapes, and furniture. Use a brush attachment to vacuum furniture legs, headboard, and in and around the nightstand. While cleaning, look for signs of bed bugs, and report these immediately.
3. Resident shall avoid using secondhand or rental furnishings, especially beds and mattresses. Used items are often infested with bed bugs. If you must use rented or secondhand items, inspect them carefully, and never accept any item that shows signs of bed bugs. Resident shall not bring discarded items from the curbside into the unit.
4. Resident shall cover mattresses and box springs with zippered, vinyl coverings. These are relatively inexpensive and can prevent bed bugs from getting inside the mattress, their favorite nesting spot. The covers will also prevent any bugs inside from getting out; they will eventually die inside the sealed cover (though this may take many months). Thicker covers will last longer.
5. Resident shall arrange furniture to minimize bed bug hiding places. If possible, keep beds and upholstered furniture several inches away from the walls. Bed bugs can jump as far as three inches.
6. Resident shall check for hitch-hiking bedbugs. If you stay in a hotel or another home, inspect your clothing, luggage, shoes and belongings for signs of bed bugs before you enter your apartment. Check backpacks, shoes, and clothing after visits to friends or family, theaters, or after using public transportation. After guests visit, inspect beds, bedding, and upholstered furniture.
7. Resident shall report any problems immediately. Specifically, Resident shall: Report any signs of bed bugs immediately. Do not wait. Even a few bugs can rapidly multiply to create a major infestation that can spread from unit to unit. Resident is to notify management if a problem of bedbugs is suspected. Resident is not to try to treat the infestation as treatments available to the general public are of limited effectiveness. Resident shall pay the cost of any extermination or bedbugs or other treatment to remedy an infestation, and any repairs occasioned by any such infestation or by any such treatment, including, to the extent attributable to Resident's failure to keep the premises free from bedbugs, the cost of treatment and repairs to other residential units and common areas within the property.
8. Resident shall pay the cost of any extermination or bedbugs or other treatment to remedy an infestation, and any repairs occasioned by any infestation or by any such treatment, including, to the extent attributable to Resident's failure to keep the premises free from any pests, including, but not limited to bedbugs, the cost of treatment and repairs to other residential units and common areas within the property.
9. Resident agrees to indemnify and hold the Owner/Agent harmless from any actions, claims, losses, damages and expenses including but not limited to attorneys' fees that Owner/Agent may incur as a result of the negligence of the Resident(s) or any guest occupying or using the premises.
10. It is acknowledged that the Owner/Agent shall not be liable for any loss of personal property or providing temporary housing during treatment to and/or for the Resident, as a result of an infestation of bedbugs.

<u></u>	<u>fernandezfundoraelianny@gmail.com</u>
Elianny Fernandez Fundora	om
<u></u>	<u>fidelmilian53@gmail.com</u>
Fidel Orlando Milian Rosell	
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BY Beverly Fernandez:
OPG VENTURES, LLC:
Managing Agent for: **Mission Manor Apartments**

SATELLITE DISH ADDENDUM

Resident’s Name(s): **Elianny Fernandez Fundora and Fidel Orlando Milian Rosell**

Apartment Address: **2912 W 42ND AVE 03, KANSAS CITY, KS 66103**

These rules have been drafted to avoid misunderstandings in regard to Satellite Dish Installation, Maintenance and removal. The Landlord has allowed Satellite Dishes for this property, as long as the following procedures are followed and maintained.

- 1. **Please contact Manager before installation to receive written permission.**
- 2. **A refundable \$250.00 deposit is required prior to installation.**
- 3. **Dish must be installed within the apartment or on a patio or balcony that is part of the apartment. You may not install a satellite dish in a common area or on the roof.** You may not install a satellite dish outside your apartment unless you have a patio or balcony, and you may not install a dish on an exterior wall. You may install a dish entirely inside your apartment.
- 4. **Satellite dish must not be larger than one meter in diameter.** You may not install any satellite dish larger than 3 feet, 3 inches measured across its widest span.
- 5. **Dish must be securely mounted and may not extend beyond the edge of the apartment.** Your dish must be mounted in such a manner that it cannot become dislodged. It must not extend beyond the edge of the patio or balcony railing. You may not hang a dish out the window. We recommend that you install a tripod on your patio or balcony for the installation of your dish.
- 6. **Installation must not damage the apartment or apartment building.** You may not damage the apartment when installing your dish. You may not drill holes in railings, exterior walls, balcony floorboards, floor or ceiling joists or any other location where holes might impair the buildings weatherproofing or there is a risk of striking electrical or water lines.
- 7. **Dish must be professionally installed.** You may not install your dish yourself. You may hire a professional to install it for you, and our maintenance staff will supervise the installation.
- 8. **You are liable for any injury or damage to persons or property caused by your dish, and you must maintain liability insurance covering any such injury or damage.** You install and operate your dish at your own risk. You will be liable for any injury or damage to persons or property caused by your dish. To ensure that you are able to pay damages in the event that your dish causes injury or damage, you must purchase and maintain liability insurance for your dish for as long as you have it at our community. You must provide us with proof that you have this insurance.
- 9. **Please contact Manager before installation to receive written permission.**

I agree:



Elianny Fernandez Fundora

fernandezfundoraelianny@gmail.com



Fidel Orlando Milian Rosell

fidelmilian53@gmail.com

BY Beverly Fernandez:
OPG VENTURES, LLC:
Managing Agent for:

Beverly Fernandez

Mission Manor Apartments

CRIME FREE AND DRUG FREE HOUSING LEASE ADDENDUM

Resident’s Name(s): Elianny Fernandez Fundora and Fidel Orlando Milian Rosell

Apartment Address: 2912 W 42ND AVE 03, KANSAS CITY, KS 66103

In Consideration of the execution or renewal of a Lease for the dwelling unit identified in the Lease, Resident and Landlord agree as follows:

1. **Criminal Activity by Resident and Resident’s Guests Banned.** Resident, any member of the Resident’s household, Resident’s guests, Residents invitees or any other person who is living in, visiting, inhabiting, dwelling in, staying at, or frequenting the Resident’s apartment or is given access to Resident’s apartment by Resident, members of Resident’s household, or Resident’s occupants, or who is on the common grounds, or any other person in the apartment or on the common grounds invited there in any way by the Resident, members of the Resident’s household, or Resident’s occupants, shall not engage or in any way be involved in any criminal activity including drug-related criminal activity, in, on or near the apartment or common area and in the case of Resident, members of Resident’s household or Resident’s occupants, in, at, on or near the apartment or common area, nor off the property. “Drug related criminal activity” means the illegal manufacture, sale, distribution, use or possession with intent to manufacture, sell, distribute, or use a controlled substance (as defined in section 102 of the Controlled Substance Act {21 U.S.C. 8021}).
2. **Facilitation of Criminal Activity Banned.** Resident, any member of Resident’s household, Resident’s occupants, Resident’s guests, Resident’s invitees, or any other person who is living in, visiting, inhabiting, dwelling in, staying at, or frequenting the Resident’s apartment or is given access to Resident’s apartment by Resident, members of Resident’s household, or Resident’s occupants, or who is on the common grounds, or any other person in the apartment or on the common grounds invited there in any way by Resident, members of Resident’s household, or Resident’s occupants, **shall not engage in any act intended to facilitate criminal activity, including drug-related criminal activity, in, on or near the apartment or common area; and in the case of the Resident, members of the Resident’s household, or Residents occupants, in, at on or near the apartment or common area, nor even off the property.**
3. **Use of Apartment for Criminal Activity Banned.** Resident, any member of Resident’s household, Resident’s occupants, Resident’s guests, Resident’s invitees, or any other person who is living in, visiting, inhabiting, dwelling in, staying at, or frequenting the Resident’s apartment or is given access to Resident’s apartment by Resident, members of Resident’s household, or Resident’s occupants, or who is on the common grounds, or any other person in the apartment or on the common grounds invited there in any way by the Resident, member of Resident’s household, or Resident’s occupants, **shall not permit the apartment to be used for any criminal activity, including drug related criminal activity, regardless of whether the individuals engaging in such activity is a member of the household, an occupant, guest, or invitee, and regardless of whether Resident is at home during any offenses.**
4. **Drug Related Activity Banned.** Resident, any member of Resident’s household, Resident’s occupants, Resident’s guests, Resident’s invitees, or any other person who is living in, visiting, inhabiting, dwelling in, staying at, or frequenting the Resident’s apartment or is given access to Resident’s apartment by Resident, members of Resident’s household, or Resident’s occupants, or who is on the common grounds, or any other person in the apartment or on the common grounds invited there in any way by the Resident, member of Resident’s household, or Resident’s occupants, **shall not engage in drug-related criminal activity. Drug related activity means the illegal manufacture, sale, distribution, use, or possession with intent to manufacture, sell, distribute, or use a controlled substance as defined in Section 102 of the Controlled Substance Act, 21 U.S.C. 802 at any location, whether in, at, on or near the apartment or common areas, and in the case of Resident, members of Resident’s household, or Resident’s occupants, in at, on or near the apartment or common area, nor even off the property.**
5. **All Criminal Activity Banned.** Resident, any member of Resident’s household, Resident’s occupants, Resident’s guests, Resident’s invitees, or any other person who is living in, visiting, inhabiting, dwelling in, staying at, or frequenting the Resident’s apartment or is given access to Resident’s apartment by Resident, members of Resident’s household, or Resident’s occupants, or who is on the common grounds, or any other person in the apartment or on the common grounds invited there in any way by the Resident, member of Resident’s household, or Resident’s occupants, **shall not engage in acts of violence or threats of violence including, but not limited to , the unlawful discharge of firearms, prostitution, criminal street gang activity, threatening or intimidating, or assault on or near the apartment or common grounds, or any other breach of the Lease agreement that otherwise jeopardizes the health, safety and welfare of the Owner, Owner’s Agent, or other residents, or involving imminent or actual serious property damage.**
6. **Harassment Banned.** Resident, the members of the Resident’s household, or the Resident’s guest shall not engage in a pattern of conduct composed of a series of acts over a period of time, however short, evidencing a continuity of purpose directed at a specific person including, but not limited to other Residents, their invitees and visitors, the management or maintenance team, or vendors that serves no legitimate purpose and that would cause a reasonable adult to suffer distress on or near LANDLORD’s premises. These are grounds for immediate Lease Termination and/or eviction proceedings.
7. **Violation of the Above Provisions Shall Be a Material and Irreparable Violation of the Lease and Good Cause for Termination of the Tenancy.** A single violation of any of the provisions of this addendum shall be deemed a serious violation and a material non-compliance with the Lease. It is understood and agreed that a single violation shall be good cause for termination of the Lease. Unless otherwise prohibited by law, proof of violation **shall not require criminal conviction**, but shall be a preponderance of the evidence. In case of conflict between the provisions of this addendum and any other provisions of the Lease, the provisions of the addendum shall govern.
8. **Addendum Supersedes Lease.** In case of conflict between the provisions of this addendum and any other provisions of the Lease, the provisions of the Addendum shall govern.
9. **Addendum in Incorporated into Lease.** This Lease Addendum is incorporated into the Lease executed or renewed this day between Landlord and Resident. This CRIME FREE LEASE ADDENDUM is incorporated into the Lease executed or renewed on this date **October 1, 2024** between Landlord and Resident:



Elianny Fernandez Fundora

fernandezfundoraelianny@gmail.com



Fidel Orlando Milian Rosell

fidelmilian53@gmail.com

BY Beverly Fernandez:
OPG VENTURES, LLC:
Managing Agent for:

Beverly Fernandez

Mission Manor Apartments

Resident Lease Addendum
(Media Release Form)

This document is an Addendum and is a part of the Rental/Lease Agreement, dated **October 1, 2024**, between **Mission Manor Apartments** "Owner" and **Elianny Fernandez Fundora and Fidel Orlando Milian Rosell** "Resident" for the premises located at, **2912 W 42ND AVE 03, KANSAS CITY, KS 66103**.

- 1. Resident grants permission to the Owner to use their image (photographs and/or video) for use in Media publications, including (but not limited to) Pictures, Videos, Email Blasts, Marketing Brochures, Newsletters, Social Media Outlets, General Publications, Property Sponsored Events, Website and/or Affiliates.
- 2. Resident waives any right to inspect or approve the finished photographs, videos, or other electronic media that may be used in conjunction with them now or in the future, whether that use is known to the Resident or unknown.
- 3. Resident waives any right to royalties or other compensation arising from or related to the use of the image.
- 4. Resident understands they are free to address any specific questions regarding this release by submitting those questions in writing prior to signing.
- 5. Resident agrees that failure to submit these questions in writing will be interpreted as a free and knowledgeable acceptance of the terms of this release.

EF FM

Initials of Residents

By signing this Addendum, Resident agrees that they are fully aware of the Lease provisions regarding the use of their image in Media publications



Elianny Fernandez Fundora

fernandezfundoraelianny@gmail.com



Fidel Orlando Milian Rosell

fidelmilian53@gmail.com

BY Beverly Fernandez:
OPG VENTURES, LLC:
Managing Agent for:

Beverly Fernandez

Mission Manor Apartments

Disclosure of Information on Lead-Based Paint and/or Lead-Based Paint Hazards

Lead Warning Statement

Housing built before 1978 may contain lead-based paint. Lead from paint, paint chips, and dust can pose health hazards if not managed properly. Lead exposure is especially harmful to young children and pregnant women. Before renting pre-1978 housing, lessors must disclose the presence of known lead-based paint and/or lead-based paint hazards in the dwelling. Lessees must also receive a federally approved pamphlet on lead poisoning prevention.

Lessor's Disclosure

- (a) Presence of lead-based paint and/or lead-based paint hazards (check (i) or (ii) below):
- (i) _____ Known lead-based paint and/or lead-based paint hazards are present in the housing (explain).
- (ii) X Lessor has no knowledge of lead-based paint and/or lead-based paint hazards in the housing.
- (b) Records and reports available to the lessor (check (i) or (ii) below):
- (i) _____ Lessor has provided the lessee with all available records and reports pertaining to lead-based paint and/or lead-based paint hazards in the housing (list documents below).
- (ii) X Lessor has no reports or records pertaining to lead-based paint and/or lead-based paint hazards in the housing.

Lessee's Acknowledgment (initial)

- (c) _____ Lessee has received copies of all information listed above.
- (d) X Lessee has received the pamphlet *Protect Your Family from Lead in Your Home*.

EF FM _____ Initials of Residents

Agent's Acknowledgment (initial)

- (d) X Agent has informed the lessor of the lessor's obligations under 42 U.S.C. 4852(d) and is aware of his/her responsibility to ensure compliance.

BF Initials of Landlord

Certification of Accuracy

The following parties have reviewed the information above and certify, to the best of their knowledge, that the information they have provided is true and accurate.

Mission Manor Apartments	October 1, 2024
Lessor	Date

F

Lessee 1 Date Lessee 2 Date

Lessee 3	Date	Lessee 4	Date
----------	------	----------	------

Beverly Fernandez

Agent Date Agent Date

SECURITY DEPOSIT AGENCY ADDENDUM

THIS SECURITY DEPOSIT AGENCY ADDENDUM is made and entered into on this **October 1, 2024**, by and between **Elianny Fernandez Fundora and Fidel Orlando Milian Rosell** ("Resident"), ("Co-Signor") and **Mission Manor Apartments** (Collectively referred to as "Landlord").

Resident has paid **Rentable** in the amount of **\$400.00** and agrees to the following policies:

- 1. If the Resident elects to pay the security deposit/policy amount over the course of the lease term, the Resident agrees to make payments in a timely manner directly to the company, **Rentable**
- 2. The Resident agrees to update the account information-if such updates are necessary-and hold the Landlord blameless should security deposit refunds fail due to (but not limited to) inaccurate or outdated Resident bank account information.
- 3. If any portion of the deposit is withheld, Landlord will provide a statement describing the reason(s) for and the amount of money withheld. The Landlord retains the right to charge the Resident for damage, waste, or neglect which are in excess of the amount of the security deposit/policy paid to **Rentable**.
- 4. Resident agrees to maintain coverage throughout each successive renewal period should the Resident choose to participate in an insurance-based security deposit agency. Termination of the policy prior to lease expiration could result in lease violations, fines, and/or lease termination.

With my signature, I acknowledge and agree to the policies stated above:

 _____ Elianny Fernandez Fundora	 _____ fernandezfundoraelianny@gmail.com	 _____ XXXX-XX-7041	
 _____ Fidel Orlando Milian Rosell	 _____ fidelmilian53@gmail.com	 _____ XXXX-XX-5176	
_____	_____	_____	
_____	_____	_____	
_____	_____	_____	
_____	_____	_____	
_____	_____	_____	_____
_____	_____	_____	_____

BY Beverly Fernandez:
OPG VENTURES, LLC:
Managing Agent for:

Beverly Fernandez

Mission Manor Apartments

Mission Manor Apartments

SMOKE FREE ADDENDUM TO RENTAL AGREEMENT/LEASE

In consideration of the execution or renewal of the lease at **Mission Manor Apartments**, "Owner" and **Elianny Fernandez Fundora and Fidel Orlando Milian Rosell** ("Resident"), ("Co-Signor") "Resident" agrees as follows.

Resident and all members of Resident's family or household are parties to a written lease with Landlord (the Lessor). This addendum states the following additional terms, condition and rules which is incorporated into the lease.

- 1. **Purpose of Addendum:** The parties desire to mitigate (i) the irritation and known health effects of secondhand smoke; (ii) the increased maintenance, cleaning and redecorating costs from smoking; (iii) the increased risk of fire from smoking; and (iv) the higher costs of fire insurance for a non-smoke-free building.
- 2. **Smoke-Free Premises:** Resident agrees and acknowledges that the premises to be occupied by Resident and members of Resident's household have been designated as a smoke-free living environment. "Smoking" means inhaling, exhaling, burning, vaping, or carrying any lighted cigar, cigarette, pipe or any other device containing any tobacco product, or any other leaf, weed, plant or other products. Resident and members of Resident's household shall not smoke anywhere in the unit rented by Resident, or the building where the Resident's dwelling is located or in any of the common areas, breezeways or adjoining grounds of such building or other parts of the rental community, nor shall Resident permit any guests or visitors under the control of Resident to do so.

Should Landlord authorize smoking on the premises, the designated areas are:
15 feet away from all buildings and or community structures.

- 3. **Resident to Promote No-Smoking Policy:** Resident shall inform Resident's guests of the no-smoking policy. Further, Resident shall promptly give Landlord a written statement of any incident where tobacco smoke is migrating or drifting into the Resident's unit from sources outside of the Resident's apartment unit.
- 4. **Owner/Agent Not Guarantor of Smoke-Free Environment:** Resident acknowledges that Landlord's adoption of a smoke-free living environment, and the efforts to designate the rental complex/property as smoke-free, does not make the Landlord or any of its managing agents the guarantor of Resident's health or of the smoke-free condition of the Resident's unit and the common areas.
- 5. **Other Residents are Third-Party Beneficiaries of Resident's Agreement:** Landlord and Resident agrees that the other Residents at the complex are the third-party beneficiaries of this Addendum. Therefore, Resident's commitments in this Addendum are made to the other Residents as well as to the Landlord. A Resident may sue another Resident for an injunction to prohibit smoking or for damages but does not have the right to evict another resident. Any suit between Residents herein shall not create a presumption that the Landlord breached this Addendum.
- 6. **Effect of Breach and Rights to Terminate Lease:** A breach of this Lease Addendum shall give each party all the rights contained herein, as well as the rights in the Lease. A material breach of this addendum shall be a material breach of the lease and grounds for immediate termination of the Lease by the Landlord in addition to the assessment of applicable fines and damage charges up to \$500.00 per occurrence.



Elianny Fernandez Fundora

fernandezfundoraelianny@gmail.com

XXXX-XX-7041



Fidel Orlando Milian Rosell

fidelmilian53@gmail.com

XXXX-XX-5176

BY Beverly Fernandez:
OPG VENTURES, LLC:
Managing Agent for:

Beverly Fernandez
Mission Manor Apartments

Liability Addendum

For the duration of the Lease Agreement, Lessee is required to maintain and provide evidence of either tenant liability insurance or renters insurance ("Required insurance"). Minimum coverage under Lessee's tenant liability insurance or renters insurance policy must be no less than:

(\$100,000) Limit of Liability for Lessee's legal liability for damage to the landlord's property

Lessee is required to furnish Lessor with evidence of Required Insurance prior to occupancy of leased premises and at the time of each lease renewal period. If at any time Lessee does not have such insurance, Lessor has the right to 'force place' replacement coverage and charge Lessee a fee to cover the expense for such insurance.

Lessee may obtain Required Insurance from an insurance agent or insurance company of Lessee's choice. If Lessee furnishes evidence of such insurance and maintains the insurance for the duration of the Lease Agreement, then nothing more is required. If Lessee does not maintain Required Insurance, the insurance requirement of this Lease Agreement may be satisfied by Lessor, who may schedule the Lessee's unit for coverage under the MASTER POLICY. The coverage provided under the MASTER POLICY will include Required Insurance coverage listed above. An amount equal to the total cost to the Lessor of adding Lessee's unit to the MASTER POLICY shall be charged back to Lessee by the Lessor, or the Lessor's authorized representative. Some important points of this coverage, which Lessee should understand are:

1. Lessor is the Named Insured under the MASTER POLICY. Lessee is an Additional Insured under the tenant liability component of the MASTER POLICY for liability arising from on-premises Bodily Injury and Property Damage up to the Limits of Liability appearing above.
2. MASTER POLICY coverage is not personal liability insurance or renters insurance. Lessee makes no warranty or representation that MASTER POLICY covers the Lessor's personal property (contents) or additional living expenses. Although coverage may be similar to a personal liability insurance policy or the liability portion of a Renters Insurance Policy, the MASTER POLICY may not protect Lessee as if Lessee had purchased personal liability or renters insurance from an insurance agent or insurance company of Lessee's choice. Certain restrictions apply.
3. Coverage only applies to liability arising on the residence premises. Lessee is not insured away from the residence premises.
4. Coverage under the MASTER POLICY may be more expensive than the cost of Required Insurance available to the Lessee. At any time, Lessee may contact an agent of their choice for personal liability or renters insurance options to satisfy the Required Insurance under the Lease Agreement.
5. Licensed insurance agents may receive a commission on the MASTER POLICY policy.
6. The fee to cover the expense of this coverage shall be (\$30.00) per month.

Subject to the terms of the policy, MASTER POLICY will extend legal defense to Lessee in the event of actual or alleged liability for bodily injury or property damage not otherwise excluded by the MASTER POLICY policy. MASTER POLICY is designed to fulfill the insurance requirement of the Lease Agreement.

Scheduling under the MASTER POLICY policy is not mandatory and Lessee may purchase Required Insurance from an insurance agent or insurance company of Lessee's choice at any time and coverage under the MASTER POLICY policy will be immediately terminated.

 Applicant Signature  Applicant Signature

Applicant Signature Applicant Signature

Applicant Signature Applicant Signature

Date _____



Protect Your Family From Lead in Your Home



March 2021

Are You Planning to Buy or Rent a Home Built Before 1978?

Did you know that many homes built before 1978 have **lead-based paint**? Lead from paint, chips, and dust can pose serious health hazards.

Read this entire brochure to learn:

- How lead gets into the body
- How lead affects health
- What you can do to protect your family
- Where to go for more information

Before renting or buying a pre-1978 home or apartment, federal law requires:

- Sellers must disclose known information on lead-based paint or lead-based paint hazards before selling a house.
- Real estate sales contracts must include a specific warning statement about lead-based paint. Buyers have up to 10 days to check for lead.
- Landlords must disclose known information on lead-based paint or lead-based paint hazards before leases take effect. Leases must include a specific warning statement about lead-based paint.

If undertaking renovations, repairs, or painting (RRP) projects in your pre-1978 home or apartment:

- Read EPA's pamphlet, *The Lead-Safe Certified Guide to Renovate Right*, to learn about the lead-safe work practices that contractors are required to follow when working in your home (see page 12).



Simple Steps to Protect Your Family from Lead Hazards

If you think your home has lead-based paint:

- Don't try to remove lead-based paint yourself.
- Always keep painted surfaces in good condition to minimize deterioration.
- Get your home checked for lead hazards. Find a certified inspector or risk assessor at epa.gov/lead.
- Talk to your landlord about fixing surfaces with peeling or chipping paint.
- Regularly clean floors, window sills, and other surfaces.
- Take precautions to avoid exposure to lead dust when remodeling.
- When renovating, repairing, or painting, hire only EPA- or state-approved Lead-Safe certified renovation firms.
- Before buying, renting, or renovating your home, have it checked for lead-based paint.
- Consult your health care provider about testing your children for lead. Your pediatrician can check for lead with a simple blood test.
- Wash children's hands, bottles, pacifiers, and toys often.
- Make sure children eat healthy, low-fat foods high in iron, calcium, and vitamin C.
- Remove shoes or wipe soil off shoes before entering your house.

Lead Gets into the Body in Many Ways

Adults and children can get lead into their bodies if they:

- Breathe in lead dust (especially during activities such as renovations, repairs, or painting that disturb painted surfaces).
- Swallow lead dust that has settled on food, food preparation surfaces, and other places.
- Eat paint chips or soil that contains lead.

Lead is especially dangerous to children under the age of 6.

- At this age, children's brains and nervous systems are more sensitive to the damaging effects of lead.
- Children's growing bodies absorb more lead.
- Babies and young children often put their hands and other objects in their mouths. These objects can have lead dust on them.



Women of childbearing age should know that lead is dangerous to a developing fetus.

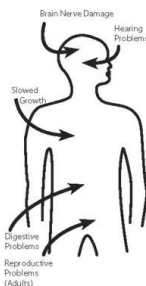
- Women with a high lead level in their system before or during pregnancy risk exposing the fetus to lead through the placenta during fetal development.

Health Effects of Lead

Lead affects the body in many ways. It is important to know that even exposure to low levels of lead can severely harm children.

In children, exposure to lead can cause:

- Nervous system and kidney damage
- Learning disabilities, attention-deficit disorder, and decreased intelligence
- Speech, language, and behavior problems
- Poor muscle coordination
- Decreased muscle and bone growth
- Hearing damage



While low-lead exposure is most common, exposure to high amounts of lead can have devastating effects on children, including seizures, unconsciousness, and in some cases, death.

Although children are especially susceptible to lead exposure, lead can be dangerous for adults, too.

In adults, exposure to lead can cause:

- Harm to a developing fetus
- Increased chance of high blood pressure during pregnancy
- Fertility problems (in men and women)
- High blood pressure
- Digestive problems
- Nerve disorders
- Memory and concentration problems
- Muscle and joint pain

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Check Your Family for Lead

Get your children and home tested if you think your home has lead.

Children's blood lead levels tend to increase rapidly from 6 to 12 months of age, and tend to peak at 18 to 24 months of age.

Consult your doctor for advice on testing your children. A simple blood test can detect lead. Blood lead tests are usually recommended for:

- Children at ages 1 and 2
- Children or other family members who have been exposed to high levels of lead
- Children who should be tested under your state or local health screening plan

Your doctor can explain what the test results mean and if more testing will be needed.

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Where Lead-Based Paint Is Found

In general, the older your home or childcare facility, the more likely it has lead-based paint.¹

Many homes, including private, federally-assisted, federally-owned housing, and childcare facilities built before 1978 have lead-based paint. In 1978, the federal government banned consumer uses of lead-containing paint.²

Learn how to determine if paint is lead-based paint on page 7.

Lead can be found:

- In homes and childcare facilities in the city, country, or suburbs,
- In private and public single-family homes and apartments,
- On surfaces inside and outside of the house, and
- In soil around a home. (Soil can pick up lead from exterior paint or other sources, such as past use of leaded gas in cars.)

Learn more about where lead is found at epa.gov/lead.

¹ "Lead-based paint" is currently defined by the federal government as paint with lead levels greater than or equal to 1.0 milligram per square centimeter (mg/cm²), or more than 0.5% by weight.

² "Lead-containing paint" is currently defined by the federal government as lead in new dried paint in excess of 90 parts per million (ppm) by weight.

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Identifying Lead-Based Paint and Lead-Based Paint Hazards

Deteriorated lead-based paint (peeling, chipping, chalking, cracking, or damaged paint) is a hazard and needs immediate attention. **Lead-based paint** may also be a hazard when found on surfaces that children can chew or that get a lot of wear and tear, such as:

- On windows and window sills
- Doors and door frames
- Stairs, railings, banisters, and porches

Lead-based paint is usually not a hazard if it is in good condition and if it is not on an impact or friction surface like a window.

Lead dust can form when lead-based paint is scraped, sanded, or heated. Lead dust also forms when painted surfaces containing lead bump or rub together. Lead paint chips and dust can get on surfaces and objects that people touch. Settled lead dust can reenter the air when the home is vacuumed or swept, or when people walk through it. EPA currently defines the following levels of lead in dust as hazardous:

- 10 micrograms per square foot (µg/ft²) and higher for floors, including carpeted floors
- 100 µg/ft² and higher for interior window sills

Lead in soil can be a hazard when children play in bare soil or when people bring soil into the house on their shoes. EPA currently defines the following levels of lead in soil as hazardous:

- 400 parts per million (ppm) and higher in play areas of bare soil
- 1,200 ppm (average) and higher in bare soil in the remainder of the yard

Remember, lead from paint chips—which you can see—and lead dust—which you may not be able to see—both can be hazards.

The only way to find out if paint, dust, or soil lead hazards exist is to test for them. The next page describes how to do this.

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Checking Your Home for Lead

You can get your home tested for lead in several different ways:

- A lead-based paint **inspection** tells you if your home has lead-based paint and where it is located. It won't tell you whether your home currently has lead hazards. A trained and certified testing professional, called a lead-based paint inspector, will conduct a paint inspection using methods, such as:
 - Portable x-ray fluorescence (XRF) machine
 - Lab tests of paint samples
- A **risk assessment** tells you if your home currently has any lead hazards from lead in paint, dust, or soil. It also tells you what actions to take to address any hazards. A trained and certified testing professional, called a risk assessor, will:
 - Sample paint that is deteriorated on doors, windows, floors, stairs, and walls
 - Sample dust near painted surfaces and sample bare soil in the yard
 - Get lab tests of paint, dust, and soil samples
- A combination inspection and risk assessment tells you if your home has any lead-based paint and if your home has any lead hazards, and where both are located.

Be sure to read the report provided to you after your inspection or risk assessment is completed, and ask questions about anything you do not understand.



Checking Your Home for Lead, continued

In preparing for renovation, repair, or painting work in a pre-1978 home, Lead-Safe Certified renovators (see page 12) may:

- Take paint chip samples to determine if lead-based paint is present in the area planned for renovation and send them to an EPA-recognized lead lab for analysis. In housing receiving federal assistance, the person collecting these samples must be a certified lead-based paint inspector or risk assessor
- Use EPA-recognized tests kits to determine if lead-based paint is absent (but not in housing receiving federal assistance)
- Presume that lead-based paint is present and use lead-safe work practices

There are state and federal programs in place to ensure that testing is done safely, reliably, and effectively. Contact your state or local agency for more information, visit epa.gov/lead, or call **1-800-424-LEAD (5323)** for a list of contacts in your area.³

³ Hearing- or speech-challenged individuals may access this number through TTY by calling the Federal Relay Service at 1-800-877-8339.

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What You Can Do Now to Protect Your Family

If you suspect that your house has lead-based paint hazards, you can take some immediate steps to reduce your family's risk:

- If you rent, notify your landlord of peeling or chipping paint.
- Keep painted surfaces clean and free of dust. Clean floors, window frames, window sills, and other surfaces weekly. Use a mop or sponge with warm water and a general all-purpose cleaner. (Remember: never mix ammonia and bleach products together because they can form a dangerous gas.)
- Carefully clean up paint chips immediately without creating dust.
- Thoroughly rinse sponges and mop heads often during cleaning of dirty or dusty areas, and again afterward.
- Wash your hands and your children's hands often, especially before they eat and before nap time and bed time.
- Keep play areas clean. Wash bottles, pacifiers, toys, and stuffed animals regularly.
- Keep children from chewing window sills or other painted surfaces, or eating soil.
- When renovating, repairing, or painting, hire only EPA- or state-approved Lead-Safe Certified renovation firms (see page 12).
- Clean or remove shoes before entering your home to avoid tracking in lead from soil.
- Make sure children eat nutritious, low-fat meals high in iron, and calcium, such as spinach and dairy products. Children with good diets absorb less lead.

Reducing Lead Hazards

Disturbing lead-based paint or removing lead improperly can increase the hazard to your family by spreading even more lead dust around the house.

- In addition to day-to-day cleaning and good nutrition, you can **temporarily** reduce lead-based paint hazards by taking actions, such as repairing damaged painted surfaces and planting grass to cover lead-contaminated soil. These actions are not permanent solutions and will need ongoing attention.
- You can minimize exposure to lead when renovating, repairing, or painting by hiring an EPA- or state-certified renovator who is trained in the use of lead-safe work practices. If you are a do-it-yourselfer, learn how to use lead-safe work practices in your home.
- To remove lead hazards permanently, you should hire a certified lead abatement contractor. Abatement (or permanent hazard elimination) methods include removing, sealing, or enclosing lead-based paint with special materials. Just painting over the hazard with regular paint is not permanent control.

Always use a certified contractor who is trained to address lead hazards safely.

- Hire a Lead-Safe Certified firm (see page 12) to perform renovation, repair, or painting (RRP) projects that disturb painted surfaces.
- To correct lead hazards permanently, hire a certified lead abatement contractor. This will ensure your contractor knows how to work safely and has the proper equipment to clean up thoroughly.

Certified contractors will employ qualified workers and follow strict safety rules as set by their state or by the federal government.



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Reducing Lead Hazards, continued

If your home has had lead abatement work done or if the housing is receiving federal assistance, once the work is completed, dust cleanup activities must be conducted until clearance testing indicates that lead dust levels are below the following levels:

- 10 micrograms per square foot ($\mu\text{g}/\text{ft}^2$) for floors, including carpeted floors
- 100 $\mu\text{g}/\text{ft}^2$ for interior windows sills
- 400 $\mu\text{g}/\text{ft}^2$ for window troughs

Abatement is designed to permanently eliminate lead-based paint hazards. However, lead dust can be reintroduced into an abated area.

- Use a HEPA vacuum on all furniture and other items returned to the area, to reduce the potential for reintroducing lead dust.
- Regularly clean floors, window sills, troughs, and other hard surfaces with a damp cloth or sponge and a general all-purpose cleaner.

Please see page 9 for more information on steps you can take to protect your home after the abatement. For help in locating certified lead abatement professionals in your area, call your state or local agency (see pages 15 and 16), epa.gov/lead, or call 1-800-424-LEAD.

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Other Sources of Lead

Lead in Drinking Water

The most common sources of lead in drinking water are lead pipes, faucets, and fixtures.

Lead pipes are more likely to be found in older cities and homes built before 1986.

You can't smell or taste lead in drinking water.

To find out for certain if you have lead in drinking water, have your water tested.

Remember older homes with a private well can also have plumbing materials that contain lead.

Important Steps You Can Take to Reduce Lead in Drinking Water

- Use only cold water for drinking, cooking and making baby formula. Remember, boiling water does not remove lead from water.
- Before drinking, flush your home's pipes by running the tap, taking a shower, doing laundry, or doing a load of dishes.
- Regularly clean your faucet's screen (also known as an aerator).
- If you use a filter certified to remove lead, don't forget to read the directions to learn when to change the cartridge. Using a filter after it has expired can make it less effective at removing lead.

Contact your water company to determine if the pipe that connects your home to the water main (called a service line) is made from lead. Your area's water company can also provide information about the lead levels in your system's drinking water.

For more information about lead in drinking water, please contact EPA's Safe Drinking Water Hotline at 1-800-426-4791. If you have other questions about lead poisoning prevention, call 1-800-424-LEAD.*

Call your local health department or water company to find out about testing your water, or visit epa.gov/safewater for EPA's lead in drinking water information. Some states or utilities offer programs to pay for water testing for residents. Contact your state or local water company to learn more.

13 * Hearing- or speech-challenged individuals may access this number through TTY by calling the Federal Relay Service at 1-800-877-8339.

Renovating, Repairing or Painting a Home with Lead-Based Paint

If you hire a contractor to conduct renovation, repair, or painting (RRP) projects in your pre-1978 home or childcare facility (such as pre-school and kindergarten), your contractor must:

- Be a Lead-Safe Certified firm approved by EPA or an EPA-authorized state program
- Use qualified trained individuals (Lead-Safe Certified renovators) who follow specific lead-safe work practices to prevent lead contamination
- Provide a copy of EPA's lead hazard information document, *The Lead-Safe Certified Guide to Renovate Right*



RRP contractors working in pre-1978 homes and childcare facilities must follow lead-safe work practices that:

- **Contain the work area.** The area must be contained so that dust and debris do not escape from the work area. Warning signs must be put up, and plastic or other impermeable material and tape must be used.
- **Avoid renovation methods that generate large amounts of lead-contaminated dust.** Some methods generate so much lead-contaminated dust that their use is prohibited. They are:
 - Open-flame burning or torching
 - Sanding, grinding, planing, needle gunning, or blasting with power tools and equipment not equipped with a shroud and HEPA vacuum attachment
 - Using a heat gun at temperatures greater than 1100°F
- **Clean up thoroughly.** The work area should be cleaned up daily. When all the work is done, the area must be cleaned up using special cleaning methods.
- **Dispose of waste properly.** Collect and seal waste in a heavy duty bag or sheeting. When transported, ensure that waste is contained to prevent release of dust and debris.

To learn more about EPA's requirements for RRP projects, visit epa.gov/getleadsafe, or read *The Lead-Safe Certified Guide to Renovate Right*.

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Other Sources of Lead, continued

- **Lead smelters** or other industries that release lead into the air.
- **Your job.** If you work with lead, you could bring it home on your body or clothes. Shower and change clothes before coming home. Launder your work clothes separately from the rest of your family's clothes.
- **Hobbies** that use lead, such as making pottery or stained glass, or refinishing furniture. Call your local health department for information about hobbies that may use lead.
- Old **toys** and **furniture** may have been painted with lead-containing paint. Older toys and other children's products may have parts that contain lead.⁴
- Food and liquids cooked or stored in **lead crystal** or **lead-glazed pottery or porcelain** may contain lead.
- Folk remedies, such as "**greta**" and "**azarcon**," used to treat an upset stomach.

⁴ In 1978, the federal government banned toys, other children's products, and furniture with lead-containing paint. In 2008, the federal government banned lead in most children's products. The federal government currently bans lead in excess of 100 ppm by weight in most children's products.

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For More Information

The National Lead Information Center

Learn how to protect children from lead poisoning and get other information about lead hazards on the Web at epa.gov/safewater and hud.gov/lead, or call **1-800-424-LEAD (5323)**.

EPA's Safe Drinking Water Hotline

For information about lead in drinking water, call **1-800-426-4791**, or visit epa.gov/lead for information about lead in drinking water.

Consumer Product Safety Commission (CPSC) Hotline

For information on lead in toys and other consumer products, or to report an unsafe consumer product or a product-related injury, call **1-800-638-2772**, or visit CPSC's website at cpsc.gov or saferproducts.gov.

State and Local Health and Environmental Agencies

Some states, tribes, and cities have their own rules related to lead-based paint. Check with your local agency to see which laws apply to you. Most agencies can also provide information on finding a lead abatement firm in your area, and on possible sources of financial aid for reducing lead hazards. Receive up-to-date address and phone information for your state or local contacts on the Web at epa.gov/safewater, or contact the National Lead Information Center at **1-800-424-LEAD**.

Hearing- or speech-challenged individuals may access any of the phone numbers in this brochure through TTY by calling the toll-free Federal Relay Service at **1-800-877-8339**.

U. S. Environmental Protection Agency (EPA)

Regional Offices

The mission of EPA is to protect human health and the environment. Your Regional EPA Office can provide further information regarding regulations and lead protection programs.

Region 1 (Connecticut, Massachusetts, Maine, New Hampshire, Rhode Island, Vermont)

Regional Lead Contact
U.S. EPA Region 1
5 Post Office Square, Suite 100, OES 05-4
Boston, MA 02109-3912
(888) 372-7341

Region 2 (New Jersey, New York, Puerto Rico, Virgin Islands)

Regional Lead Contact
U.S. EPA Region 2
7890 Woodbridge Avenue
Building 205, Mail Stop 225
Edison, NJ 08837-3679
(732) 906-6809

Region 3 (Delaware, Maryland, Pennsylvania, Virginia, DC, West Virginia)

Regional Lead Contact
U.S. EPA Region 3
1650 Arch Street
Philadelphia, PA 19103
(215) 814-2088

Region 4 (Alabama, Florida, Georgia, Kentucky, Mississippi, North Carolina, South Carolina, Tennessee)

Regional Lead Contact
U.S. EPA Region 4
AFC Tower, 12th Floor, Air, Pesticides & Toxics
61 Forsyth Street, SW
Atlanta, GA 30303
(404) 562-8998

Region 5 (Illinois, Indiana, Michigan, Minnesota, Ohio, Wisconsin)

Regional Lead Contact
U.S. EPA Region 5 (IL-17J)
77 West Jackson Boulevard
Chicago, IL 60604-3666
(312) 353-3808

Region 6 (Arkansas, Louisiana, New Mexico, Oklahoma, Texas, and 66 Tribes)

Regional Lead Contact
U.S. EPA Region 6
1445 Ross Avenue, 12th Floor
Dallas, TX 75202-2733
(214) 665-2704

Region 7 (Iowa, Kansas, Missouri, Nebraska)

Regional Lead Contact
U.S. EPA Region 7
11201 Renner Blvd.
Lenexa, KS 66219
(800) 223-0425

Region 8 (Colorado, Montana, North Dakota, South Dakota, Utah, Wyoming)

Regional Lead Contact
U.S. EPA Region 8
1595 Wynkoop St.
Denver, CO 80202
(303) 312-6966

Region 9 (Arizona, California, Hawaii, Nevada)

Regional Lead Contact
U.S. EPA Region 9 (CMD-4-2)
75 Hawthorne Street
San Francisco, CA 94105
(415) 947-4280

Region 10 (Alaska, Idaho, Oregon, Washington)

Regional Lead Contact
U.S. EPA Region 10 (20-C04)
Air and Toxics Enforcement Section
1200 Sixth Avenue, Suite 155
Seattle, WA 98101
(206) 553-1200

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Consumer Product Safety Commission (CPSC)

The CPSC protects the public against unreasonable risk of injury from consumer products through education, safety standards activities, and enforcement. Contact CPSC for further information regarding consumer product safety and regulations.

CPSC

4330 East West Highway
Bethesda, MD 20814-4421
1-800-638-2772
cpsc.gov or saferproducts.gov

U. S. Department of Housing and Urban Development (HUD)

HUD's mission is to create strong, sustainable, inclusive communities and quality affordable homes for all. Office of Lead Hazard Control and Healthy Homes for further information regarding the Lead Safe Housing Rule, which protects families in pre-1978 assisted housing, and for the lead hazard control and research grant programs.

HUD

451 Seventh Street, SW, Room 8236
Washington, DC 20410-3000
(202) 402-7698
hud.gov/lead

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U. S. EPA Washington DC 20460
U. S. CPSC Bethesda MD 20814
U. S. HUD Washington DC 20410

EPA-747-K-12-001
March 2021

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IMPORTANT!

Lead From Paint, Dust, and Soil in and Around Your Home Can Be Dangerous if Not Managed Properly

- Children under 6 years old are most at risk for lead poisoning in your home.
- Lead exposure can harm young children and babies even before they are born.
- Homes, schools, and child care facilities built before 1978 are likely to contain lead-based paint.
- Even children who seem healthy may have dangerous levels of lead in their bodies.
- Disturbing surfaces with lead-based paint or removing lead-based paint improperly can increase the danger to your family.
- People can get lead into their bodies by breathing or swallowing lead dust, or by eating soil or paint chips containing lead.
- People have many options for reducing lead hazards. Generally, lead-based paint that is in good condition is not a hazard (see page 10).

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